

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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FRANKIE VELEZ,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, DETECTIVE ANGEL
THEVENIN, Tax No. 949724, DETECTIVE DMAINE
FREELAND, Tax No. 941208, LIEUTENANT TERENCE
OBRIEN, Tax No. 909630, and POLICE OFFICERS
JOHN DOES NUMBERS ONE THROUGH TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates KINGS
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 15, 2020

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE ANGEL THEVENIN, Tax No. 949724, Narcotics Borough Brooklyn
North, One Police Plaza, Room 110-c, New York, NY 10038
DETECTIVE DMAINE FREELAND, Tax No. 941208, Narcotics Borough Brooklyn
North, One Police Plaza, Room 110-c, New York, NY 10038
LIEUTENANT TERENCE OBRIEN, Tax No. 909630, Narcotics Borough Brooklyn
North, One Police Plaza, Room 110-c, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
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THE CITY OF NEW YORK, DETECTIVE ANGEL
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FREELAND, Tax No. 941208, LIEUTENANT TERENCE
OBRIEN, Tax No. 909630, and POLICE OFFICERS
JOHN DOES NUMBERS ONE THROUGH TEN,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, FRANKIE VELEZ, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On January 31, 2019, at approximately 11:00 a.m., plaintiff Frankie Velez, while lawfully in the vicinity of Prospect Place and Buffalo Avenue, Brooklyn, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was unlawfully imprisoned at the 77th Precinct and subjected to an illegal strip search. Plaintiff was maliciously prosecuted and denied the right to due process and a fair trial until all charges against plaintiff were dismissed by motion of the District Attorney's office on September 16, 2019. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned, illegally stripped searched, maliciously prosecuted and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff FRANKIE VELEZ is a resident of the state of New York.

3. DETECTIVE ANGEL THEVENIN, Tax No. 949724, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE ANGEL THEVENIN, Tax No. 949724, was at all times relevant herein, assigned to the Narcotics Borough Brooklyn North.

5. DETECTIVE ANGEL THEVENIN, Tax No. 949724, is being sued in his individual and official capacity.

6. DETECTIVE DMAINE FREELAND, Tax No. 941208, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. DETECTIVE DMAINE FREELAND, Tax No. 941208, was at all times relevant herein, assigned to the Narcotics Borough Brooklyn North.

8. DETECTIVE DMAINE FREELAND, Tax No. 941208, is being sued in his individual and official capacity.

9. LIEUTENANT TERENCE OBRIEN, Tax No. 909630 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. LIEUTENANT TERENCE OBRIEN, Tax No. 909630 was at all times relevant herein, assigned to the Narcotics Borough Brooklyn North.

11. LIEUTENANT TERENCE OBRIEN, Tax No. 909630 is being sued in his individual and official capacity.

12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

17. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on February 12, 2020.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On January 31, 2019, at approximately 11:00 a.m., plaintiff was lawfully present in the vicinity of Prospect Place and Buffalo Avenue, Brooklyn, New York, when the defendant police officers unlawfully stopped, questioned, frisked, searched, and falsely arrested plaintiff without reasonable suspicion probable cause or legal justification.

22. At no time relevant herein did plaintiff commit a crime or violate the law in any way, nor did the police officer have an objective reason to accuse plaintiff committing a crime or violating the law in any way.

23. At no point did defendants recover any drugs, weapons, or other illegal contraband from plaintiff in plaintiff's possession, custody or control.

24. Nevertheless, plaintiff was unlawfully arrested and unlawfully handcuffed by the defendant officers without legal justification or probable cause.

25. The defendant police officers transported plaintiff to the 77th Precinct against his will, where plaintiff was unlawfully photographed, fingerprinted and detained in a holding cell.

26. Thereafter, the defendant police officers conducted an invasive and unlawful strip search of plaintiff without reasonable suspicion or probable cause.

27. At no time did the defendant police officer have an objective reason to believe that plaintiff secreted drugs, weapons or illegal contraband under his clothing or inside a body cavity.

28. Specifically, the defendant police officers stripped plaintiff of all of his clothes, spread his buttocks and searched his buttocks.

29. Notably, at no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

30. After many hours in unlawful custody, plaintiff was unlawfully transported to Brooklyn Central Booking and placed in a holding cell.

31. The defendant police officers maliciously initiated the prosecution against plaintiff by providing the DA's Office with false, misleading, and incomplete information regarding the facts that formed the officers' basis for arresting plaintiff.

32. Further, the defendant police officers signed and executed a criminal court complaint that contained false, misleading and incomplete information and/or evidence under oath and under the risk of a penalty of perjury.

33. The defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that plaintiff committed a crime.

34. On February 1, 2019, , plaintiff was arraigned in Brooklyn County Criminal Court, charged with crimes that the defendant officers had no basis to alleged that he committed and was plaintiff was released on his own recognizance.

35. Plaintiff was unlawfully charged with Criminal Diversion of Prescription Medications and Prescriptions in the Fourth Degree.

36. Thereafter, plaintiff was forced to appear in Court on approximately 8 occasions before all charges were dismissed upon motion of the District Attorney's Office on September 16, 2019.

37. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, falsely arresting and imprisoning, illegally strip searching, maliciously prosecuting, and denying plaintiff the right to due process and a fair trial

38. The unlawful, search, seizure, false arrest and imprisonment, unlawful strip search, malicious prosecution, and denial of plaintiff's right to a fair trial by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

41. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

44. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

47. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

50. The conduct of defendants in stopping, frisking, and searching plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

51. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

54. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

57. Defendants lacked probable cause to search plaintiff.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

61. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein

63. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

64. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

65. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

66. In withholding/creating false evidence against plaintiff Frankie Velez, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

67. As a result of the foregoing, plaintiff Frankie Velez, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

70. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

71. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Frankie Velez. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

73. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

74. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

77. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION**Negligent Hiring, Retention, Training and Supervision**

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION**Unlawful Strip Search**

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. Plaintiff was searched by defendants without an individualized reasonable suspicion that plaintiff was concealing weapons or other contraband based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

83. As a result of the foregoing, plaintiff's Constitutional rights were deprived and he sustained great emotional injuries.

84. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the United States Constitution and the State of New York.

85. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION**Malicious Prosecution**

86. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

88. Defendants commenced and continued a criminal proceeding against plaintiff.

89. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

90. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

91. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

92. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

93. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

94. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Failure to Intervene

95. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 94 with the same force and effect as if more fully set forth at length herein.

96. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

97. Defendants failed to intervene to prevent the unlawful conduct described herein.

98. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

99. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

102. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

103. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Frankie Velez demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
December 15, 2020

By: /s/
STUART E. JACOBS
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
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North, One Police Plaza, Room 110-c, New York, NY 10038

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 15, 2020

/s/
STUART E. JACOBS